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GOVERNMENT OF INDIA
MINISTRY OF FINANCE
(DEPARTMENT OF REVENUE)

New Delhi, the 11th September, 2024

NOTIFICATION
No. 05/2024-Customs (CVD)

G.S.R. (E). -Whereas, in the matter of “Atrazine Technical” (hereinafter referred to as the subject goods) falling under tariff items 3808 91 99, 3808 93 90 or 3808 99 90 of the First Schedule to the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), originating in or exported from China PR (hereinafter referred to as the subject country), and imported into India, the designated authority in its final findings, published in the Gazette of India, Extraordinary, Part I, Section 1, *vide* notification No. 7/26/2023-DGTR, dated the 14th June, 2024, has *inter alia* come to the conclusion that the cessation of countervailing duty is likely to lead to continuation or recurrence of subsidization and injury to the domestic industry and has recommended continued imposition of countervailing duty on imports of the subject goods originating in or exported from the subject country.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (6) of section 9 of the Customs Tariff Act, read with rules 20, 22 and 24 of the Customs Tariff (Identification, Assessment and Collection of Countervailing Duty on Subsidized Articles and for Determination of Injury) Rules, 1995 and in supersession of the notification of the Government of India, Ministry of Finance (Department of Revenue) number 3/2019-Customs (CVD), dated the 17th September, 2019, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 664(E), dated the 17th September, 2019, except as respects things done or omitted to be done before such supersession, the Central Government, after considering the aforesaid final findings of the designated authority, hereby imposes on the subject goods, the description of which is specified in column (3) of the Table below, falling under tariff items of the First Schedule to the Customs Tariff Act as specified in the corresponding entry in column (2), originating in the countries as specified in the corresponding entry in column (4), exported from the countries as specified in the corresponding entry in column (5), produced by the producers as specified in the corresponding entry in column (6), and imported into India, countervailing duty of an amount as specified in the corresponding entry in column (7) of the said Table, namely:—

Table

S. No.	Tariff item	Description of Goods	Country of Origin	Country of Export	Producer	Duty amount as a % of CIF Value
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1	3808 91 99 3808 93 90 or 3808 99 90	Atrazine Technical*	China PR	Any country including China PR	Xiangshui Zhongshan Biotechnology Co., Ltd.	9.28
2	-do-	-do-	China PR	Any country including China PR	Any other than the producer at Sr. No. 1	11.94
3	-do-	-do-	Any country	China PR	Any	11.94

			other than China PR			
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*The product is also known under the following names:—

6-Chloro-N-Ethyl-N'-(1-Methylethyl)-Triazine-2,4-Diamine;

2-Chloro-4-Ethylamino-6-Isopropylamine-S-Triazine;

2-Chloro-4-(Ethylamino)-6-(Isopropylamino)-S-Triazine;

2-Chloro-4-(Ethylamino)-6-(Isopropylamino)-Triazine;

Chloro-4-(Propylamino)-6-Ethylamino-S-Triazine;

Chloro-4-(Propylamino)-6-Ethylamino-S-Triazine, etc.

2. The countervailing duty imposed under this notification shall be levied for a period of five years (unless revoked, superseded or amended earlier) from the date of publication of this notification in the Official Gazette and shall be payable in Indian currency.

Explanation. – For the purposes of this notification,—

- (a) the rate of exchange applicable for the purposes of calculation of such countervailing duty shall be the rate which is specified in the notification of the Government of India, in the Ministry of Finance (Department of Revenue), issued from time to time, in exercise of the powers conferred by section 14 of the Customs Act, 1962 (52 of 1962), and the relevant date for the determination of the rate of exchange shall be the date of presentation of the bill of entry under section 46 of the said Act;
- (b) “CIF value” means the assessable value as determined under section 14 of the Customs Act, 1962 (52 of 1962).

[F. No. CBIC-190354/124/2024-TRU Section-CBEC]

(Dilmil Singh Soach)

Under Secretary to the Government of India